Quote

Date
01/09/2026

Number
QN-05465 / 1

Hyserve Contact
Adam Conway

Lead Time
5-7 working days from order

HYSERVE LIMITED
Unit 6 & 7 Station Lane Industrial Estate
Birtley
Gateshead
DH3 1DQ

SOIL MACHINE DYNAMICS LIMITED
FAO: Chris Tonnessen
Turbinia Works, Davy Bank
Wallsend
NE28 6UZ

12m Seamless Tube

Payment Terms:
As per agreed terms

Product Code/Description	Quantity	Lead time	Rate	Amount
ST-M38-50-AT 38mm X 5mm 316L Seamless Tube TUBE 38 x 5WT SEAMLESS 316 SS ASTM A269	12	5-7 working days	£91.95	£1,103.40
CARR04 Carriage Next Day up to 125kg (UKM) UK Mainland Euro pallet	1		£150.00	£150.00

Subtotal	£1,253.40
VAT	£250.68
Total	**£1,504.08**

Valid To: 01/10/2026

Please note:
- This quote is subject to HYSERVE Standard Terms and Conditions for Goods and Services.
- Carriage and packaging are excluded unless otherwise stated.
- There is a Minimum Order Charge of £100.00 (inclusive of carriage)
- Quality documentation requirements must be clearly specified in the request for quotation. Any documentation not explicitly included in our quotation will be excluded and subject to additional charges.

TERMS AND CONDITIONS FOR GOODS AND SERVICES

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1. Interpretation

1.1 Definitions. In these Conditions, the following definitions apply:

Business Day:	means a day other than a Saturday, Sunday or public holiday in England when banks in London are open for business.
Commencement Date:	has the meaning set out in clause 2.2.
Conditions:	means these terms and conditions as amended from time to time in accordance with 25.
Contract:	means the contract between the Supplier and the Customer for the supply of Goods and/or Services in accordance with these Conditions.
Customer:	means the person or firm who purchases the Goods and/or Services from the Supplier.
Deliverables:	mean the deliverables set out in the Purchase Order.
Delivery Location:	means has the meaning set out in clause 3.2.
Force Majeure Event:	means has the meaning given to it in clause 18.1.
Goods:	means the goods (or any part of them) set out in the Purchase Order
Intellectual Property Rights:	means patents, rights to inventions, copyright and related rights, trade marks, business names and domain names, rights in get-up, goodwill and the right to sue for passing off, rights in designs, database rights, rights to use, and protect the confidentiality of, confidential information (including know-how), and all other intellectual property rights, in each case whether registered or unregistered and including all applications and rights to apply for and be granted, renewals or extensions of, and rights to claim priority from, such rights and all similar or equivalent rights or forms of protection which subsist or will subsist now or in the future in any part of the world.
Purchase Order:	means the Customer's order for the supply of Goods and/or Services, as set out in the Customer's written acceptance of the Supplier's quotation, on an order form containing details of the of the Goods and Services.
Results:	means any use, results, figures, outcomes and conclusions derived from the provision of the Services.
Services:	means product development, servicing, piping, manufacture and testing of hydraulic systems.
Service Specification:	means the description or specification for the Services provided in writing by the Supplier to the Customer in a Technical Specification form.
Supplier:	means HYSERVE Limited registered in England and Wales with company number 12596465.

1.2 In these Conditions, the following rules apply:

1.2.1 A person includes a natural person, corporate or unincorporated body (whether or not having separate legal personality);

1.2.2 A reference to a party includes its personal representatives, successors or permitted assigns;

1.2.3 A reference to a statute or statutory provision is a reference to such statute or provision as amended or re-enacted. A reference to a statute or statutory provision includes any subordinate legislation made under that statute or statutory provision, as amended or re-enacted;

1.2.4 Any phrase introduced by the terms including, include, in particular or any similar expression shall be construed as illustrative and shall not limit the sense of the words preceding those terms; and

1.2.5 A reference to writing or written includes faxes and e-mails.

2. Basis of the Contract

2.1 The Purchase Order constitutes an offer by the Customer to purchase Goods and/or Services in accordance with these Conditions.

2.2. The Purchase Order shall only be deemed to be accepted when the Supplier issues written acceptance of the Purchase Order at which point, and on which date the Contract shall come into existence (Commencement Date).

2.3 The Contract constitutes the entire agreement between the parties. The Customer acknowledges that it has not relied on any statement, promise, representation, assurance or warranty made or given by or on behalf of the Supplier which is not set out in the Contract.

2.4 Any samples, drawings, descriptive matter or advertising issued by the Supplier and any descriptions of the Goods or illustrations or descriptions of the Services contained in the Supplier's catalogues or brochures are issued or published for the sole purpose of giving an approximate idea of the Services and/or Goods described in them. They shall not form part of the Contract or have any contractual force.

2.5 These Conditions apply to the Contract to the exclusion of any other terms that the Customer seeks to impose or incorporate, or which are implied by trade, custom, practice or course of dealing.

2.6 Any quotation given by the Supplier shall not constitute an offer, and is only valid for a period of 30 Business Days from its date of issue.

2.7 All of these Conditions shall apply to the supply of both Goods and Services except where application to one or the other is specified.

2.8 Due to the nature of the business, there may be variations to the basis of the contract through changes to scope for example –

a) changes to the numbers of hours to be worked on service, maintenance or installation works through circumstances beyond our control;

b) additional duties added to the agreed scope

c) changes to the customer specification after initial costs have been advised

In every case, the customer will be notified by formal email to confirm the variation to the basis of the contract. If there is nil response from the customer, a second email will be sent and this will be deemed to be accepted by the customer if nil response – in order for the work to continue and subsequent additional billing will ensue.

3. Delivery of Goods

3.1 The Supplier shall ensure that each delivery of the Goods is accompanied by a delivery note which shows the date of the Purchase Order, all relevant Customer and Supplier reference numbers, the type and quantity of the Goods (including the code number of the Goods, where applicable), special storage instructions (if any) and, if the Purchase Order is being delivered by instalments, the outstanding balance of Goods remaining to be delivered.

3.2 The Supplier shall deliver the Goods via postal or courier service to the location set out in the Purchase Order or such other location as the parties may agree (Delivery Location) at any time after the Supplier notifies the Customer that the Goods are ready.

3.3 Delivery of the Goods shall be completed on the Goods' arrival at the Delivery Location.

3.4 Any dates quoted for delivery of the Goods are approximate only, and the time of delivery is not of the essence. The Supplier shall not be liable for any delay in delivery of the Goods that is caused by a Force Majeure Event or the Customer's failure to provide the Supplier with adequate delivery instructions or any other instructions that are relevant to the supply of the Goods.

3.5 If the Supplier fails to deliver the Goods, its liability shall be limited to the costs and expenses incurred by the Customer in obtaining replacement goods of similar description and quality in the cheapest market available, less the price of the Goods. The Supplier shall have no liability for any failure to deliver the Goods to the extent that such failure is caused by a Force Majeure Event the Customer's failure to provide the Supplier with adequate delivery instructions for the Goods or any relevant instruction related to the supply of the Goods.

3.6 If the Customer fails to accept or take delivery of the Goods within 5 Business Days of the Supplier notifying the Customer that the Goods are ready, then except where such failure or delay is caused by a Force Majeure Event or by the Supplier's failure to comply with its obligations under the Contract in respect of the Goods:

a. delivery of the Goods shall be deemed to have been completed at 8.00 am on the fifth Business Day following the day on which the Supplier notified the Customer that the Goods were ready; and

b. the Supplier shall store the Goods until delivery takes place and charge the Customer for all related costs and expenses (including insurance).

3.7 If 5 Business Days after the Supplier notified the Customer that the Goods were ready for delivery the Customer has not accepted delivery of them, the Supplier may resell or otherwise dispose of part or all of the Goods and, after deducting reasonable storage and selling costs, account to the Customer for any excess over the price of the Goods or charge the Customer for any shortfall below the price of the Goods.

3.8 The Customer shall not be entitled to reject the Goods if the Supplier delivers up to and including 5 per cent more or less than the quantity of Goods ordered, but a pro-rata adjustment shall be made to the Purchase Order invoice on receipt of notice from the Customer that the wrong quantity of Goods was delivered.

3.9 The Supplier may deliver the Goods by instalments, which shall be invoiced and paid for separately. Each instalment shall constitute a separate contract. Any delay in delivery or defect in an instalment shall not entitle the Customer to cancel any other instalment.

4. Quality of Goods

4.1. The Supplier warrants that on delivery the Goods shall:

a. conform in all material respects with their description; and

b. be fit for any purpose held out by the Supplier.

4.2 Subject to clause 4.3, if:

a. the Customer gives notice in writing within 7 days of discovery that some or all of the Goods do not comply with the warranty set out in clause 4.1;

b. the Supplier is given a reasonable opportunity of examining such Goods; and

c. the Customer (if asked to do so by the Supplier) returns such Goods to the Supplier's place of business at the Supplier's cost, the Supplier shall, at its sole discretion, repair or replace the defective Goods, or refund the price of the defective Goods in full.

4.3 The Supplier shall not be liable for the Goods' failure to comply with the warranty in clause 4.1 if:

a. the Customer makes any further use of such Goods after giving a notice in accordance with clause 4.2;

b. the defect arises because the Customer failed to follow the Supplier's oral or written instructions as to the storage, installation, commissioning, use or maintenance of the Goods or (if there are none) good trade practice; or

c. the Goods differ from their description as a result of changes made to ensure they comply with applicable statutory or regulatory standards.

4.4 Except as provided in this clause 4, the Supplier shall have no liability to the Customer in respect of the Goods' failure to comply with the warranty set out in clause 4.1.

4.5 The terms of these Conditions shall apply to any replacement Goods supplied by the Supplier under clause 4.2.

5. Title and Risk

5.1 The risk in the Goods shall pass to the Customer on completion of delivery.

5.2 Title to the Goods shall not pass to the Customer until the Supplier receives payment in full (in cash or cleared funds) for the Goods and any other goods that the Supplier has supplied to the Customer in respect of which payment has become due, in which case title to the Goods shall pass at the time of payment of all such sums.

5.3 Until title to the Goods has passed to the Customer, the Customer shall:

a. store the Goods separately from all other goods held by the Customer so that they remain readily identifiable as the Supplier's property;

b. not remove, deface or obscure any identifying mark or packaging on or relating to the Goods;

c. notify the Supplier immediately if it becomes subject to any of the events listed in clause 12.2.(b) to clause12.2.(l); and

d. give the Supplier such information relating to the Goods as the Supplier may require from time to time.

5.4 Subject to clause 5.5, the Customer may resell or use the Goods in the ordinary course of its business (but not otherwise) before the Supplier receives payment for the Goods. However, if the Customer resells the Goods before that time:

a. it does so as principal and not as the Supplier's agent; and

b. title to the Goods shall pass from the Supplier to the Customer immediately before the time at which resale by the Customer occurs.

5.5 If before title to the Goods passes to the Customer the Customer becomes subject to any of the events listed in clause 12.2.(b) to clause 12.2.(l), then, without limiting any other right or remedy the Supplier may have:

a. the Customer's right to resell Goods or use them in the ordinary course of its business ceases immediately; and in accordance with 5.5.(b) and 5.5(c) the Supplier may at any time:

b. require the Customer to deliver up all Goods in its possession which have not been resold, or irrevocably incorporated into another product; and

c. if the Customer fails to do so promptly, enter any premises of the Customer or of any third party where the Goods are stored in order to recover them.

6. Supply of Services

6.1 The Supplier shall provide the Services to the Customer in accordance with the Service Specification in all material respects.

6.2 The Supplier shall use all reasonable endeavours to meet any performance dates for the Services specified in the Service Specification, but any such dates shall be estimates only and time shall not be of the essence for the performance of the Services.

6.3 The Supplier shall have the right to make any changes to the Services which are necessary to comply with any applicable law or safety requirement, or which do not materially affect the nature or quality of the Services, and the Supplier shall notify the Customer in any such event.

6.4 The Supplier warrants to the Customer that the Services will be provided using reasonable care and skill.

7. Customer's Obligations

7.1 The Customer shall:

a. ensure that the terms of the Purchase Order and (if submitted by the Customer) the Goods Specification are complete and accurate;

b. co-operate with the Supplier in all matters relating to the Services;

c. provide the Supplier, its employees, agents, consultants and subcontractors, with access to the Customer's premises, office accommodation and other facilities as reasonably required by the Supplier to provide the Services;

d. provide the Supplier with such information and materials as the Supplier may reasonably require to supply the Services, and ensure that such information is accurate in all material respects; and

e. obtain and maintain all necessary licences, permissions and consents which may be required for the Services before the date on which the Services are to start.

7.2 If the Supplier's performance of any of its obligations in respect of the Services is prevented or delayed by any act or omission by the Customer or failure by the Customer to perform any relevant obligation (Customer Default):

a. the Supplier shall without limiting its other rights or remedies have the right to suspend performance of the Services until the Customer remedies the Customer Default, and to rely on the Customer Default to relieve it from the performance of any of its obligations to the extent the Customer Default prevents or delays the Supplier's performance of any of its obligations;

b. the Supplier shall not be liable for any costs or losses sustained or incurred by the Customer arising directly or indirectly from the Supplier's failure or delay to perform any of its obligations as set out in this clause 7.2; and

c. the Customer shall reimburse the Supplier on written demand for any costs or losses sustained or incurred by the Supplier arising directly or indirectly from the Customer Default.

8. Charges and Payment

8.1 The price for Goods shall be the price set out in the Purchase Order or, if no price is quoted, the price set out in the Supplier's published price list as at the date of delivery. The price of the Goods is exclusive of all costs and charges of packaging, insurance, transport of the Goods, which shall be paid by the Customer when it pays for the Goods.

8.2 The charges for Services shall be on a time and materials basis:

a. the charges shall be calculated in accordance with the Supplier's standard daily fee rates, as set out in the Service Specification; and

b. the Supplier's standard daily fee rates for each individual person are calculated on the basis of an eight-hour day from 8.00 am to 4.30 pm worked on Business Days.

8.3 In respect of Goods, the Supplier shall invoice the Customer on or at any time after completion of delivery. In respect of Services, the Supplier shall invoice the Customer monthly in arrears.

8.4 The Customer shall pay each invoice submitted by the Supplier:

a. within 30 days of the date of the invoice; and

b. in full and in cleared funds to a bank account nominated in writing by the Supplier, and time for payment shall be of the essence of the Contract.

8.5 All amounts payable by the Customer under the Contract are exclusive of amounts in respect of value added tax chargeable from time to time (VAT). Where any taxable supply for VAT purposes is made under the Contract by the Supplier to the Customer, the Customer shall, on receipt of a valid VAT invoice from the Supplier, pay to the Supplier such additional amounts in respect of VAT as are chargeable on the supply of the Services or Goods at the same time as payment is due for the supply of the Services or Goods.

8.6 If the Customer fails to make any payment due to the Supplier under the Contract by the due date for payment, then the Customer shall pay interest on the overdue amount at the rate of 2% per annum above Bank of England's base rate from time to time. Such interest shall accrue on a daily basis from the due date until actual payment of the overdue amount, whether before or after judgment. The Customer shall pay the interest together with the overdue amount.

8.7 The Customer shall pay all amounts due under the Contract in full without any set-off, counterclaim, deduction or withholding except as required by law. The Supplier may, without limiting its other rights or remedies, set off any amount owing to it by the Customer against any amount payable by the Supplier to the Customer.

9. Intellectual Property Rights

9.1 The Customer shall own the Intellectual Property Rights, arising from, or in connection with, the provision of Services including the Results of product testing and any developmental input made by the Supplier in the course of providing the Services.

9.2 The Supplier retains Intellectual Property Rights in relation to the provision of the Services, including testing methods, research procedures and developmental techniques used in the delivery of Services.

9.3 The Customer acknowledges that, in respect of any third party Intellectual Property Rights in the Services, the Customer's use of any such Intellectual Property Rights is conditional on the Supplier obtaining a written licence from the relevant licensor on such terms as will entitle the Supplier to license such rights to the Customer.

10. Confidentiality

10.1 A party (receiving party) shall keep in strict confidence all technical or commercial know-how, specifications, inventions, processes or initiatives which are of a confidential nature and have been disclosed to the receiving party by the other party (disclosing party), its employees, agents or subcontractors, and any other confidential information concerning the disclosing party's business, its products and services which the receiving party may obtain. The receiving party shall only disclose such confidential information to those of its employees, agents and subcontractors who need to know it for the purpose of discharging the receiving party's obligations under the Contract, and shall ensure that such employees, agents and subcontractors comply with the obligations set out in this clause as though they were a party to the Contract. The receiving party may also disclose such of the disclosing party's confidential information as is required to be disclosed by law, any governmental or regulatory authority or by a court of competent jurisdiction. This clause 10 shall survive termination of the Contract.

11. Limitation of Liability

11.1 Nothing in these Conditions shall limit or exclude the Supplier's liability for:

a. death or personal injury caused by its negligence, or the negligence of its employees, agents or subcontractors;

b. fraud or fraudulent misrepresentation;

c. breach of the terms implied by section 2 of the Supply of Goods and Services Act 1982 (title and quiet possession); or

d. breach of the terms implied by section 12 of the Sale of Goods Act 1979 (title and quiet possession).

11.2 Subject to clause 11.1:

a. the Supplier shall under no circumstances whatever be liable to the Customer, whether in contract, tort (including negligence), breach of statutory duty, or otherwise, for any loss of profit, or any indirect or consequential loss arising under or in connection with the Contract; and

b. the Supplier's total liability to the Customer in respect of all other losses arising under or in connection with the Contract, whether in contract, tort (including negligence), breach of statutory duty, or otherwise, shall in no circumstances exceed an amount equal to the value of the Contract.

11.3 The terms implied by sections 13 to 15 of the Sale of Goods Act 1979 and the terms implied by sections 3 to 5 of the Supply of Goods and Services Act 1982 are, to the fullest extent permitted by law, excluded from the Contract.

11.4 This clause 11 shall survive termination of the Contract.

12. Termination

12.1 Without limiting its other rights or remedies either party may terminate the Contract by giving the other party not less than 1 months' written notice.

12.2 Without limiting its other rights or remedies, each party may terminate the Contract with immediate effect by giving written notice to the other party if:

a. the other party commits a material breach of its obligations under this Contract and (if such breach is remediable) fails to remedy that breach within 30 days after receipt of notice in writing to do so;

b. the other party suspends, or threatens to suspend, payment of its debts or is unable to pay its debts as they fall due or admits inability to pay its debts;

c. the other party commences negotiations with all or any class of its creditors with a view to rescheduling any of its debts, or makes a proposal for or enters into any compromise or arrangement with its creditors other than (where a company) for the

sole purpose of a scheme for a solvent amalgamation of that other party with one or more other companies or the solvent reconstruction of that other party;

d. a petition is filed, a notice is given, a resolution is passed, or an order is made, for or in connection with the winding up of the other party (being a company) other than for the sole purpose of a scheme for a solvent amalgamation of the other party with one or more other companies or the solvent reconstruction of that other party;

e. the other party (being an individual) is the subject of a bankruptcy petition or order;

f. a creditor or encumbrancer of the other party attaches or takes possession of, or a distress, execution, sequestration or other such process is levied or enforced on or sued against, the whole or any part of its assets and such attachment or process is not discharged within 14 days;

g. an application is made to court, or an order is made, for the appointment of an administrator or if a notice of intention to appoint an administrator is given or if an administrator is appointed over the other party (being a company);

h. the holder of a qualifying charge over the assets of the other party (being a company) has become entitled to appoint or has appointed an administrative receiver;

i. a person becomes entitled to appoint a receiver over the assets of the other party or a receiver is appointed over the assets of the other party;

j. any event occurs, or proceeding is taken, with respect to the other party in any jurisdiction to which it is subject that has an effect equivalent or similar to any of the events mentioned in clause 12.2.(a) to clause 12.2.(i) (inclusive);

k. the other party suspends, threatens to suspend, ceases or threatens to cease to carry on, all or substantially the whole of its business;

l. the other party's financial position deteriorates to such an extent that in the Supplier's opinion the Customer's capability to adequately fulfil its obligations under the Contract has been placed in jeopardy; or

m. the other party (being an individual) dies or, by reason of illness or incapacity (whether mental or physical), is incapable of managing his own affairs or becomes a patient under any mental health legislation.

12.3 Without limiting its other rights or remedies, the Supplier may terminate the Contract with immediate effect by giving written notice to the Customer if the Customer fails to pay any amount due under this Contract on the due date for payment.

12.4 Without limiting its other rights or remedies, the Supplier may suspend the supply of Services or all further deliveries of Goods under the Contract or any other contract between the Customer and the Supplier if the Customer fails to pay any amount due under this Contract on the due date for payment, the Customer becomes subject to any of the events listed in clause 12.2.(b) to clause 12.2.(l), or the Supplier reasonably believes that the Customer is about to become subject to any of them.

12.5 On termination of the Contract for any reason:

a. the Customer shall immediately pay to the Supplier all of the Supplier's outstanding unpaid invoices and interest and, in respect of Services supplied but for which no invoice has yet been submitted, the Supplier shall submit an invoice, which shall be payable by the Customer immediately on receipt;

b. the accrued rights and remedies of the parties as at termination shall not be affected, including the right to claim damages in respect of any breach of the Contract which existed at or before the date of termination or expiry; and

c. clauses which expressly or by implication have effect after termination shall continue in full force and effect.

13. Non-Solicitation of employees

13.1 In order to protect the legitimate business interests of the Supplier the Customer covenants with the Supplier for itself that it shall not (except with the prior written consent of the Supplier):

a. attempt to solicit or entice away; or

b. solicit or entice away,

from the employment or service of the Supplier the services of any Restricted Person other than by means of an advertising campaign open to all-comers and not specifically targeted at such staff of the Supplier.

13.2 The Customer shall be bound by the covenant set out in clause 31.1 during the term of this agreement, and for a period of 12 months after termination or expiry of this agreement.

13.3 For the purposes of this clause 13, a Restricted Person shall mean any firm, company or person employed or engaged by the Supplier during the term of this agreement at the level of Technician or above, who has been engaged in the provision of the Services or the management of this agreement either as principal, agent, employee, independent contractor or in any other form of employment or engagement and who could materially damage the interests of the Supplier if they were involved in any capacity in any business concern which competes with the business of the Supplier.

13.4 If the Customer commits any breach of this clause 13, the Customer shall, on demand, pay to the Supplier a sum equal to one year's basic salary or the annual fee that was payable by the Supplier to the Restricted Person plus the recruitment costs incurred by the Supplier in replacing such person. The parties confirm that these liquidated damages are reasonable and proportionate to protect the legitimate interest of the Supplier in performance.

14. Non-Employment of employees

14.1 In order to protect the legitimate business interests of the Supplier, the Customer covenants with the Supplier that it shall not (except with the prior written consent of the Supplier) employ or engage or otherwise facilitate the employment or engagement of any Restricted Person.

14.2 The Customer shall be bound by the covenant set out in clause 14.1 during the term of this agreement and for a period of 12 months after termination or expiry of this agreement.

14.3 For the purposes of this clause 14, a Restricted Person shall mean any firm, company or person employed or engaged by the Supplier during the term of this agreement at the level of Technician or above, who has been engaged in the provision of the Services or the management of this agreement either as principal, agent, employee, independent contractor or in any other form of employment or engagement and who could materially damage the interests of the Supplier if they were involved in any capacity in any business concern which competes with the Supplier.

14.4 If the Customer commits any breach of this clause 14, the Customer shall, on demand, pay to the Supplier a sum equal to one year's basic salary or the annual fee that was payable by the Supplier to the Restricted Person plus the recruitment costs incurred by the Supplier in replacing such person. The parties confirm that these liquidated damages are reasonable and proportionate to protect the legitimate interest of the Supplier in performance.

15. Non-poaching of customers

15.1 In order to protect the legitimate business interests of the Supplier, the Customer covenants with the Supplier that it shall not (except with the prior written consent of the Supplier) solicit or entice away (or attempt to solicit or entice away) from the Customer the business or custom of any Restricted Customer.

15.2 The Customers shall be bound by the covenant set out in clause 15.1 during the term of this agreement, and for a period of 12 months after termination or expiry of this agreement.

15.3 For the purposes of this clause 15, a Restricted Customer shall mean any firm, company or person who is or has been at any time during the immediately preceding 12 months a customer of, or in the habit of dealing with, the Supplier.

16. Beneficiaries of the covenants

16.1 The covenants in clauses 13, 14 and 15 are intended for the benefit of, and shall be enforceable to the fullest extent permitted by law, by the Supplier and shall apply to actions carried out by the Customer in any capacity (including as shareholder, partner, director, principal, consultant, officer, agent or otherwise) and whether directly or indirectly, on its own behalf or on behalf of, or jointly with, any other person.

16.2 Except as expressly provided in clause 16.1, a person who is not a party to this agreement shall not have any rights under the Contract (Rights of Third Parties) Act 1999 to enforce any term of this agreement.

17. Permitted activities

Nothing in clauses 13, 14 and 15 shall prevent the Customer from holding for investment purposes only:

a. units of any authorised unit trust; or

b. not more than 5% of any class of shares or securities of any company traded on a recognised investment exchange (within the meaning of the Financial Services and Markets Act 2000).

18. Force Majeure

18.1 For the purposes of this Contract, Force Majeure Event means an event beyond the reasonable control of the Supplier including

a. acts of God, flood, drought, earthquake or other natural disaster;

b. epidemic or pandemic;

c. terrorist attack, civil war, civil commotion or riots, war, threat of or preparation for war, armed conflict, imposition of sanctions, embargo, or breaking off of diplomatic relations;

d. nuclear, chemical or biological contamination, or sonic boom;

e. any law or any action taken by a government or public authority, including imposing an export or import restriction, quota or prohibition, or failing to grant a necessary licence or consent;

f. collapse of buildings, fire, explosion or accident; and

g. any labour or trade dispute, strikes, industrial action or lockouts (other than in each case by the party seeking to rely on this clause, or companies in the same group as that party);

h. non-performance by suppliers or subcontractors [(other than by companies in the same group as the party seeking to rely on this clause); and

i. interruption or failure of utility service.

18.2 The Supplier shall not be liable to the Customer as a result of any delay or failure to perform its obligations under this Contract as a result of a Force Majeure Event.

18.3 If the Force Majeure Event prevents the Supplier from providing any of the Services and/or Goods for more than 4 weeks, the Supplier shall, without limiting its other rights or remedies, have the right to terminate this Contract immediately by giving written notice to the Customer.

19. Assignment and other dealings

19.1 The Supplier may at any time assign, transfer, mortgage, charge, subcontract or deal in any other manner with all or any of its rights under the Contract and may subcontract or delegate in any manner any or all of its obligations under the Contract to any third party.

19.2 The Customer shall not, without the prior written consent of the Supplier, assign, transfer, charge, subcontract, declare a trust over or deal in any other manner with all or any of its rights or obligations under the Contract.

20. Notices.

20.1 Any notice or other communication given to a party under or in connection with this Contract shall be in writing, addressed to that party at its registered office (if it is a company) or its principal place of business (in any other case) or such other address as that party may have specified to the other party in writing in accordance with this clause, and shall be delivered personally or sent by prepaid first-class post or other next working day delivery service, or by commercial courier or e-mail.

20.2 A notice or other communication shall be deemed to have been received: if delivered personally, when left at the current address of the relevant party; if sent by pre-paid first class post or other next working day delivery service, at 9.00 am on the second Business Day after posting; if delivered by commercial courier, on the date and at the time that the courier's delivery receipt is signed; or, if sent or e-mail, one Business Day after transmission.

20.3 The provisions of this clause shall not apply to the service of any proceedings or other documents in any legal action.

21. Severance.

21.1 If any provision or part-provision of the Contract is or becomes invalid, illegal or unenforceable, it shall be deemed modified to the minimum extent necessary to make it valid, legal and enforceable. If such modification is not possible, the relevant provision or part-provision shall be deemed deleted. Any modification to or deletion of a provision or part-provision under this clause shall not affect the validity and enforceability of the rest of the Contract.

21.2 If one party gives notice to the other of the possibility that any provision or part-provision of this Contract is invalid, illegal or unenforceable, the parties shall negotiate in good faith to amend such provision so that, as amended, it is legal, valid and enforceable, and, to the greatest extent possible, achieves the intended commercial result of the original provision.

22. Waiver.

22.1 A waiver of any right under the Contract or law is only effective if it is in writing and shall not be deemed to be a waiver of any subsequent breach or default. No failure or delay by a party in exercising any right or remedy under the Contract or by law shall constitute a waiver of that or any other right or remedy, nor prevent or restrict its further exercise of that or any other right or remedy. No single or partial exercise of such right or remedy shall prevent or restrict the further exercise of that or any other right or remedy.

23. **No partnership or agency.**
Nothing in the Contract is intended to, or shall be deemed to, establish any partnership or joint venture between any of the parties, nor constitute either party the agent of another party for any purpose. Neither party shall have authority to act as agent for, or to bind, the other party in any way.

24. **Third party rights.**
A person who is not a party to the Contract shall not have any rights to enforce its terms.

25. **Variation.**
Except as set out in these Conditions, no variation of the Contract, including the introduction of any additional terms and conditions, shall be effective unless it is in writing and signed by the Supplier.

26. **Governing law.**
This agreement and any dispute or claim arising out of or in connection with it or its subject matter or formation (including non-contractual disputes or claims) shall be governed by and construed in accordance with the laws of England.

27. **Jurisdiction.**
Each party irrevocably agrees that the courts of England shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this Contract or its subject matter or formation (including non-contractual disputes or claims).